

## Chapter 507

### AIR POLLUTION PERMITS

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**[HISTORY: Adopted by the County Council of Allegheny County 8-26-2003 by Ord. No. 47-03. Amendments noted where applicable.]**

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#### **§ 507-1. One-year compliance period.**

Any applicant to the Allegheny County Health Department (ACHD) for a new or modified air pollution permit must demonstrate to the ACHD that they have been in compliance for a period of one year with all current air pollution permits, and applicable air pollution laws and regulations, under which they operate. The one-year compliance period will begin one year prior to the date of the new or modified permit application received by ACHD.

#### **§ 507-2. Compliance required for complete application.**

- A. ACHD shall not deem an application for a new or modified permit complete until such time as the applicant documents their compliance with current permits as specified in this chapter.
- B. ACHD shall not deem an application complete if ACHD's records show that the applicant has not been in compliance with current permits as specified in this chapter.
- C. ACHD shall not act on an application for a new or modified permit that is currently not complete.

#### **§ 507-3. Determination of noncompliance.**

A facility will not be considered to be in compliance, as the term is used in this chapter, if the ACHD, or a state or federal environmental agency has sent a notice of violation (NOV), or has sent a statement of violation (SOV) that documents the violation in writing, or has taken an enforcement action against the company including, but not limited to, issuing a fine or initiating legal proceedings.

#### **§ 507-4. Filing of required reports.**

Required reports to the ACHD that are missing at the time of application for a new or modified permit shall be considered a violation under this chapter. Required reports that are filed with ACHD at a date later than required shall not be considered a violation under this chapter.

#### **§ 507-5. Accidental release.**

A single, accidental release during the one-year compliance period shall not be considered a violation under this section unless the accidental release caused significant harm or danger to human health or significant

damage to the environment, as determined by ACHD.

**§ 507-6. Applicability.**

- A. This chapter shall not apply to facilities seeking permits to install new pollution control equipment, or making pollution prevention changes which does not increase total emissions at existing facilities in Allegheny County.
- B. This chapter shall not apply to Title V operating permits or any other operating permit issued by ACHD.
- C. This chapter shall apply to all private and public entities that apply to the ACHD for new or modified air pollution permits. Changes that would require a modified air pollution permit would include any physical change in a source, or any change in the method of operation of a source which would increase the amount of any air contaminant emitted by the source, or which would result in the emissions of any air contaminant not previously emitted, except that routine maintenance, repair and replacement shall not be considered a physical change.